

5	Holland vs. South Orange County Community College District 2022-01265727	Motion re: Excluding Evidence The motion by Defendant South Orange County Community College District (“Defendant”) for an order excluding any evidence pertaining to Dr. Mark Ritchie pursuant to CCP section 2023.030, subdivision (b) and (c) is DENIED. Pursuant to Code of Civil Procedure section 2023.030, the court may issue terminating, evidentiary, issue, and/or monetary sanctions against a party engaging in conduct that is a misuse of the discovery process. Misuse of the discovery process includes: failing to respond or to submit to an authorized method of discovery; making, without substantial justification, an unmeritorious objection to discovery; and making an evasive response to discovery. (Code Civ. Proc. § 2023.010, subd. (d), (e), and (f).) Defendant has not shown Plaintiff Joy M. Holland engaged in conduct that constitutes a misuse of the discovery process. To the extent Defendant was unable to take Dr. Mark Ritchie’s deposition, Defendant withdrew Defendant’s motion to compel Dr. Ritchie’s deposition the morning of the hearing on the motion, after viewing the Court’s tentative ruling to deny the motion. (Notice of Withdrawal, ROA No. 248.) Contrary to Defendant’s contention, Defendant sought an order compelling Dr. Ritchie to comply with the deposition subpoena and was not simply an order compelling records as Defendant now contends in Defendant’s reply. (Motion to Compel, ROA No. 188; Reply, ROA No. 400, 5:23-25 and 5:28-6:1.) In addition, Dr. Ritchie’s most recent communications do not show a refusal to appear for a deposition. (Walsh Decl., ¶¶ 9 and 13, Exhibits 7 and 10.) Rather, Dr. Ritchie sets forth the limits of the testimony absent patient authorization or court order. (<i>Id.</i>) Although Plaintiff refused to sign the provided authorization, Defendant also did not show the overly broad scope of the authorization was warranted. (<i>Id.</i>, ¶¶ 10-11, Exhibit 8.) Accordingly, the motion is denied. Plaintiff shall give notice.
6	Mall vs. City of Santa Ana 2024-01372814	Motion for Judgment on the Pleadings The motion for judgment on the pleadings by Defendant City of Santa Ana (“Defendant”) as to the first cause of action for wrongful constructive termination in violation of public policy alleged in the Complaint filed by Plaintiff Keith Mall (“Plaintiff”) is GRANTED.

Defendant's unopposed request for the Court to take judicial notice of the Complaint filed in this action is denied. It is unnecessary to ask the court to take judicial notice of materials previously filed in this case. A party may "simply call the court's attention to such papers." (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2025) ¶ 9:53.1a.)

Defendant's unopposed request for the Court to take judicial notice that Defendant is a charter city is granted. (Evid. Code, § 452, subd. (h).) Defendant's unopposed requests for the Court to take judicial notice of Defendant's charter documents, request numbers 3, 4, and 5, are granted. (*Linda Vista Village San Diego Homeowners Assn., Inc. v. Tecolote Investors, LLC* (2015) 234 Cal.App.4th 166, 185; *Olson v. County of Sacramento* (1974) 38 Cal.App.3d 958, 964.) Defendant's unopposed requests for the Court to take judicial notice of portions of Defendant's municipal code are granted. (Evid. Code, § 452, subd. (b); *Madrigal v. City of Huntington Beach* (2007) 147 Cal.App.4th 1375, 1384.)

Contrary to Plaintiff's contention, Defendant satisfied Defendant's CCP section 439 meet and confer obligation. (Lustig Decl., ¶¶ 2-3, Exhibit 1.)

Pursuant to Government Code section 815, subdivision (a), a public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person. (Gov. Code, § 815, subd. (a); *Miklosy v. Regents of Univ. of Cal.* (2008) 44 Cal.4th 876, 899, citing *Palmer v. Regents of University of California* (2003) 107 Cal.App.4th 899, 909 [Because the classic *Tameny* cause of action is a common law, judicially created tort, and not authorized by statute, it is not properly asserted against a public entity].)

There is no dispute that Defendant is a city and that Defendant is a public entity as defined under Government Code section 811.2. Plaintiff's first cause of action for wrongful constructive termination in violation of public policy is a common law liability that Plaintiff is attempting to impose against a public entity. Accordingly, the motion should be granted. (*Miklosy v. Regents of University of California* (2008) 44 Cal.4th 876, 899-900.)

Although Plaintiff correctly contends FEHA provisions may provide the policy basis for a claim for wrongful termination in violation of public policy, Plaintiff has not shown, nor cited to any legal authority that holds, a wrongful termination cause of action based on a FEHA violation may be properly maintained against Defendant, a public

		entity. To the extent <i>City of Moorpark v. Superior Court</i> (1998) 18 Cal.4th 1143 allowed a wrongful termination claim based on disability discrimination to proceed against a public entity, the California Supreme Court noted “the question of a public entity’s tort immunity under section 815 was not raised in that case. ‘It is axiomatic that cases are not authority for propositions not considered.’” (<i>Miklosy v. Regents of University of California</i> (2008) 44 Cal.4th 876, 900, fn. 7, citing <i>People v. Ault</i> (2004) 33 Cal.4th 1250, 1268, fn. 10.) Plaintiff did not identify any other statute to support Plaintiff’s contention that Plaintiff will be able to amend this cause of action to properly allege a cause of action for wrongful termination against Defendant, a public entity. Accordingly, Defendant’s motion is granted without leave to amend. Defendant shall give notice.
7	Navarro vs. FCA US LLC 2025-01486633	1. Demurrer to Amended Complaint 2. Motion to Strike Complaint 3. Case Management Conference Off Calendar
8	Phillips vs. Newport-Mesa School District 2025-01474929	Motion to Compel Further Responses to Special Interrogatories Motion to Compel Production Motion to Compel Response to Requests for Admissions Plaintiff Trenae Phillips’ motion for order compelling defendant Newport-Mesa School District to provide further responses to requests for production, set one (“RFPs”) is substantively moot given the parties’ agreement on supplemental responses after further meeting and conferring. No sanctions are awarded. Plaintiff’s motion to compel defendant Corey Stone to provide further responses to requests for admission, set one (“RFAs”) is substantively moot given the parties’ agreement on supplemental responses after further meeting and conferring. Plaintiff is awarded sanctions of \$960 against Defendant Stone. Plaintiff’s motion to compel Defendant Stone to provide further responses to special interrogatories, set one, is substantively moot given the parties’ agreement on supplemental responses after further meeting and conferring. Plaintiff is awarded sanctions of \$480. Plaintiff to give notice.